

Hur Bano v. State of U.P. — new connection to be considered on indemnity bond under clause 4.4

High Court of Judicature at Allahabad · Division Bench · 16 July 2019 · Writ-C No. 22453 of 2019 · **Writ disposed; consider connection on indemnity bond, not landlord NOC.**

HEADNOTE

An applicant in dispute with the landlord who cannot obtain a no-objection certificate may have a new-connection application processed on an indemnity bond under clause 4.4 of the U.P. Electricity Supply Code, 2005. The Division Bench disposed of the writ by directing the licensee to consider the petitioner's 4 June 2019 application on an indemnity bond instead of insisting on the landlord's NOC, expeditiously and if possible within six weeks of production of the order.

FACTUAL SUMMARY

Hur Bano, also known as Noor Bano, applied on 4 June 2019 for grant of an electric connection. The licensee did not consider the application because the petitioner had not submitted a no-objection certificate from the landlord. Counsel submitted that the petitioner was in dispute with the landlord and therefore could not obtain that certificate. Counsel for the State and for respondents 2 and 3 were heard. The Division Bench of the Allahabad High Court took up the writ on 16 July 2019.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection — occupier in landlord litigation — indemnity bond in lieu of NOC

HOLDING

Clause 4.4 of the U.P. Electricity Supply Code, 2005 permits processing of an application for electric connection on furnishing of an indemnity bond where the applicant is in litigation with the landlord and cannot obtain a no-objection certificate. The licensee was directed to consider the petitioner's application on an indemnity bond instead of insisting on the landlord's NOC, expeditiously and if possible within six weeks of production of the order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A NEW CONNECTION ON THE MERITS

The Court directed the licensee to consider the application on an indemnity bond; it did not itself grant or refuse the connection. ¶ 1